

WRITTEN SUBMISSIONS · 14 DEC 1999

Appeal submissions — McDonald's

TYPE	COURT	DATE	PARTIES
Pleadings / procedural document	The Paris Court of Appeal	14 Dec 1999	From McDonald's France

SUMMARY SHEET

Written submissions in reply of McDonald's France — Paris Court of Appeal · 14 December 1999

Overview: written submissions in reply filed on behalf of McDonald's France, respondent, before the 16th chamber A of the Paris Court of Appeal, against Bernard Collorafi and the companies SEBOL, B & O and Les Pins, appellants.

Key points

McDonald's recalls that, by judgment of 9 December 1998, the Court ruled on the inadmissibility of the claims for requalification of the agreements as commercial leases and for nullity, so that the framework of the dispute would henceforth be strictly contractual. It invokes the principle of non-cumulation of contractual and tortious liability and argues that the appellants' claims, raised to more than 68 million francs, are hypothetical, inconsistent and contrary to the nature of the relationship between the parties. The written submissions recall the three agreements at issue: August 1987 (Antibes 1, with SEBOL substituted), 9 October 1996 (Antibes Nord, B & O) and 18 June 1997 (Antibes Ouest, Les Pins), each containing a clause 4.1 excluding any guarantee of the value or profitability of the business. Collorafi is criticised for posting the procedural documents on several Internet sites.

Significance

On these grounds, McDonald's asks for the appellants' claims to be dismissed, for the judgment of the Paris Commercial Court of 18 May 1998 to be upheld and for an order in solidum of 200,000 F under article 700 of the NCPC.

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Source: bernardcollorafi.org/en/documents/appeal-written-submissions-mcdonalds-reply-collorafi-paris-1999/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.